

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Anthony Griffin

Plaintiff,

-against-

The City of New York; Neil Lawson, in his individual
capacity; Angelica Salmeron, in her individual
capacity;

Defendants

ECF CASE

COMPLAINT AND DEMAND
FOR JURY TRIAL

12 Civ. 1371 (JMF)

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §1983 for the Defendants' commissions of acts under color of law in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

JURISDICTION

2. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §§ 1983 and 1988.

3. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(3) and (4).

VENUE

4. Venue is proper pursuant to 28 U.S.C. § 1391(b)(2) in that, *inter alia*, the events giving rise to the claim occurred in the Southern District of New York.

JURY DEMAND

5. The Plaintiff demands a trial by jury on each and every one of his claims as pled herein.

PARTIES

6. Plaintiff ANTHONY GRIFFIN is a resident of New York.

7. Defendant THE CITY OF NEW YORK (the “City”) is a municipal corporation within the State of New York.

8. The New York City Police Department (the “NYPD”) is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the Constitutions and laws of the United States and of the State of New York.

9. At all relevant times herein, DEFENDANTS NEIL LAWSON and ANGELICA SALMERON, (the “Individual Defendants”), were employed by the NYPD and were acting in the capacity of agent, servant, and employee of the City.

10. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the City and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. The Individual Defendants were acting for and on behalf of the City at all times relevant herein with the power and authority vested in them as officers, agents and employee of the City and incidental to the lawful pursuit of their duties as officers, employees and agents of the City.

STATEMENT OF FACTS

11. In the evening of June 18, 2010, plaintiff Anthony Griffin was lawfully on West 114th Street between 7th and 8th Avenues in Manhattan. He was holding several balloons on a stick that he had just purchased.

12. Mr. Griffin had just given his sister two of the balloons and some money to take a cab when he was arrested by defendant Officer Salmeron.

13. Mr. Griffin was then driven to the NYPD's 28th Precinct.

14. At the precinct, officers including defendant Officer Brown, subjected Mr. Griffin to a humiliating and degrading strip and visual body cavity search, in which he was forced against his will to take all his clothes off, squat, spread his buttocks and cough.

15. The officers also offered to let Mr. Griffin go if provided them with information regarding drug sales or guns, which he refused to do.

16. Mr. Griffin was eventually taken to Central Booking at 100 Centre Street in Manhattan.

17. Mr. Griffin was brought before a judge and arraigned on a felony complaint which charged him with Criminal Possession of a Controlled Substance in the Third Degree (New York Penal Law § 220.16(1)), a class "B" felony.

18. In the felony complaint, defendant Officer Salmeron stated under penalty of prosecution that she "is informed by Police Office Neil Lawson . . . that [he] observed [Mr. Griffin], in three separate transactions, take money from three unapprehended [*sic*] others, reach into the back of his pants each time, then hand a small object to the other individual" and that defendant Officer Lawson "recovered crack cocaine from the floor where it fell from [Mr. Griffin's] shorts."

19. This information was provided by one or more of the Individual Defendants to the Assistant District Attorney or Attorneys who prosecuted the case.

20. Bail was set and the matter was adjourned for grand jury action.

21. Mr. Griffin posted bail and was finally released on June 20, 2010.

22. On December 1, 2010, the felony charge was reduced to a misdemeanor.

23. On April 4, 2011, after approximately six court appearances, Mr. Griffin's case was dismissed and sealed.

24. Mr. Griffin did not possess any controlled substance on June 18, 2010.

25. The NYPD has a formal policy, contained in its Patrol Guide, by which it authorizes strip searches only in situations where "the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods. Other factors that should be considered in determining the necessity for a strip search include, the nature of the crime (serious violent felony), arrest circumstances, subject's reputation (extremely violent person), act of violence, and discoveries from previous searches." Additionally, an NYPD directive, limiting and clarifying the strip search policy, was issued on May 13, 2004.

26. This notwithstanding, on information and belief, the NYPD has, and had at the time of the incident giving rise to this Complaint, a *de facto* policy and practice of strip-searching persons for reasons other than those specified in the Patrol Guide or NYPD directives.

CAUSES OF ACTION

FIRST CAUSE OF ACTION

42 U.S.C. § 1983 Against the Individual Defendants

27. All other paragraphs herein are incorporated by reference as though fully set forth.

28. By arresting, detaining, charging and strip searching plaintiff, the Individual Defendants engaged under color of law in the violation of his rights under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983 to be free from unreasonable searches and seizures, false arrest and imprisonment, and malicious prosecution.

29. By providing false information and/or evidence to the New York County District Attorney's office that was likely to influence a jury's decision, the Individual Defendants engaged under color of law in the violation of the Plaintiff's right to a fair trial under the Sixth Amendment to the United States Constitution and 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983 Against the City of New York

30. All other paragraphs herein are incorporated by reference as though fully set forth.

31. Municipal liability for the violations of plaintiff's Fourth and Fourteenth Amendment rights rests upon the grounds set forth below.

32. At all times material to this complaint, the defendant City, acting through the NYPD and the Individual Defendants, had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

33. At all times material to this complaint, the defendant City, acting through the NYPD and the Individual Defendants, had *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise or discipline employees and police officers, and of failing to inform the Individual Defendants supervisors of their need to train, screen, supervise or discipline said defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

WHEREFORE, the plaintiff requests that this Court:

1. Assume jurisdiction over this matter;
2. Award compensatory and punitive damages to plaintiff against the defendants,
jointly and severally;
3. Award plaintiff reasonable costs, disbursements and attorneys fees; and
4. Grant any other relief the Court deems appropriate.

Dated: New York, New York
October 1, 2012

Respectfully submitted,

Darius Wadia, L.L.C.

/s/

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